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SETTLEMENT AGREEMENT, RELEASE AND WAIVER

This Settlement Agreement, Release and Waiver (hereinafter "Agreement") is entered into between _____ and _____ ("Parents"), individually and on behalf of their son, I _____ or "Student"), and the Brecksville-Broadview Heights School District Board of Education ("District" or "Board") (collectively, "Parties").

In consideration of and for the promises and mutual covenants set forth herein, the Parties agree as follows:

1. _____ qualifies for special education and related services as a child with a disability pursuant to the Individuals with Disabilities Education Improvement Act ("IDEA") under the category of Autism. In order to avoid any potential disagreement over _____ educational programming and/or placement for the 2020-2021 and 2021-2022 school years, and any potential expense, inconvenience or acrimony associated with a due process hearing that might result from said disagreement, the Parties determine it is in their mutual best interests to enter into this Agreement.
2. This Agreement covers the 2020-2021 and 2021-2022 school years, inclusive of the summers of 2021 and 2022.
 - a. Given Parents' intent to continue their unilateral parental placement of _____ at Monarch Center for Autism ("Monarch") for the 2020-2021 and 2021-2022 school years, the District agrees to pay tuition, on behalf of Parents, to Monarch for the 2020-2021 school year, inclusive of the summer of 2021, and the 2021-2022 school year, inclusive of the summer of 2022. The District's total payment of tuition to Monarch for the 2020-2021 school year, inclusive of the summer of 2021 (i.e., the period of August 25, 2020, through July 15, 2021) shall not exceed eighty-eight thousand, seven hundred and ten dollars and no cents (\$88,710.00) related to attendance at Monarch. For the 2020-2021 school year, the maximum District payment is based upon Monarch's regular school year tuition being \$81,885 and ESY services costing \$6,825. The District will pay a like amount (i.e., the standard or base tuition charged by Monarch for children placed at Monarch by their residential public school district for the regular 2021-2022 school year and the standard or base tuition charged by Monarch for the summer of 2022 ESY program that is equivalent to the ESY program that _____ anticipated in during the summer of 2019) associated with Student's attendance at Monarch for the period of August 2021, through the conclusion of the summer of 2022 ESY program (i.e., July 2022). The maximum amount to be paid by the District is based upon Monarch delivering in-person instruction; if due to the COVID-19 pandemic Monarch is unable to deliver in-person instruction for part or all of the 2020-2021 and/or 2021-2022 school year(s) (inclusive of the summers of 2021 and 2022), including the use of a hybrid schedule that provides for students attending school fewer than five (5) days per regular school week, the District reserves the right to negotiate with Monarch a reduced tuition to reflect the reduction in the number of days of instruction and/or the lower costs associated with providing online/virtual instruction (i.e., remote learning). If the ESY

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program for the summer of 2021 and/or the summer of 2022 is canceled due to the COVID-19 pandemic, the District will not owe any tuition for that period.

Parents shall direct Monarch to provide the District Director of Pupil Services with copies of all invoices related to the tuition. The District's payments will be made on a monthly or quarterly basis as is standard for circumstances when public school districts contract with Monarch to provide educational services to a student. The District will make payment to Monarch within twenty (20) business days of the Director of Pupil Services receiving Monarch's invoices.

Parents agree that Student will remain enrolled in the District during the pendency of this Agreement. Parents further agree that for any school year in which Parents and/or Student accept the District making the payments set forth above, Parents and/or Student waive their right to apply for the Autism Scholarship Program or Jon Peterson Special Needs Scholarship. Parents further agree that for any period of time covered by this Agreement in which they seek contributions above and/or beyond that which is expressly set forth above, the District's payment obligations under this Agreement shall immediately terminate.

Parents agree to assume full responsibility for any remaining tuition and costs associated with education at Monarch during the 2020-2021 and 2021-2022 school years (inclusive of the summers of 2021 and 2022), including but not limited to transportation from Student's father's house, therapies, and/or home-based services.

- b. The District agrees to transport Student to and from Monarch and his mother's home from August 25, 2020, through the conclusion of the summer of 2022 ESY program. If, however, Student urinates, defecates and/or vomits on the vehicle and the District's contracted transportation provider charges the District a surcharge to clean-up the bodily fluids, Parents shall be responsible for paying the surcharge (i.e., \$15.00 per incident) upon receipt of proper invoicing as set forth below. The District will provide to Parents a copy of the incident reports generated as a result of any incident involving bodily fluids on the transportation vehicle. The District will submit a quarterly invoice (by November 15 (for August – October), February 15 (for November – January), May 15 (for February – April), and August 15 (for May – July)) to Parents that identifies the date of each incident and the total due, which shall be based upon the total number of incidents that occurred during the preceding three (3) months times \$15 per incident. The District will not bill Parents for an incident if the contracted transportation provider does not levy a surcharge against the District or the incident is directly attributable to (i.e., caused by) the contracted transportation provider being late to pick-up Student to transport him to/from Monarch (e.g., Student is picked-up 30-minutes late from his home in the morning and urinates on the drive to Monarch because of the late-pick-up). Parents shall submit their full payment for the amount of the invoice by the end of the month in which they receive the invoice (i.e., November 30, February 29, May 31, and August 31). Parents agree that they may not direct or control the District's choice of transportation provider as long as the District

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ensures that proper background checks as required by law are completed by said provider. If Parents request to view a video of footage of any incidents involving bodily fluids that resulted in the imposition of a surcharge from the contracted transportation provider, and such video exists, the District will, within reason, assist Parents in their efforts to view the video, including providing any necessary releases to allow Parents to view the video based upon the District's contract with the contracted transportation provider. The Parties expressly agree that if the District is closed due to inclement weather, and/or the transportation provider determines the roads to be unsafe for travel due to inclement weather, the District will not be obligated to transport Student to or from Monarch if Monarch remains open. In the event Parents choose to provide transportation on any day that the District is closed, or the provider is unable to transport due to inclement weather, the transporting Parent shall be reimbursed at the IRS-approved rate for mileage for transporting Student to and from Monarch and mother's home.

If Parents have a concern or issue related to transportation (e.g., Student is arriving at school late), Parents may notify the District Director of Pupil Services who will contact the transportation service provider and reasonably attempt to resolve / address the concern or issue.

- c. [INTENTIONALLY LEFT BLANK]
- d. Parents affirm that they selected Monarch and all other non-District providers, attendance at Monarch is pursuant to a unilateral parental placement, and Monarch and all other non-District providers were not determined by IEP team to be his least restrictive environment ("LRE"). As such, Parents agree that the District shall not be responsible for the efficacy of the educational program provided to by, through and at Monarch and all other non-District providers, and that they shall have no right to seek compensatory education or other relief from the District as a result of any real or perceived failures by Monarch and all other non-District providers. See Paragraph 3 (Student may return to school in the District any time and forego future payments otherwise authorized by this Agreement).
- e. The District's obligation to pay to Monarch the amounts identified in Paragraph 2.a. is contingent upon Parents complying with their responsibilities under this Agreement and shall automatically terminate if is no longer enrolled in or attending Monarch, or if Student's mother no longer resides in the District. Such termination shall have no effect upon the District's obligation to provide the payments in Paragraph 2.a. for educational services provided to by Monarch prior to the date he is no longer enrolled in or no longer attending Monarch, or Student's mother no longer resides in the District. If stops attending Monarch for any reason during the 2020-2021 or 2021-2022 school years, inclusive of the summers of 2021 and 2022, and Student's mother continues to reside in the District, Parents must notify the District immediately in writing and the District will offer to implement the 10/11/2019 IEP until such time as a new IEP can be developed. The new IEP shall be developed within ten (10) school days of returning to school in the District.

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Parents waive their right to challenge the appropriateness of the 10/11/2019 IEP, during the ten (10) school days while a new IEP is being developed. Parents retain the right to challenge the appropriateness of the new IEP, after it is developed and offered by the District. Parents must notify the District within five (5) business days of Student's mother moving out of the District (i.e., ceasing to be a resident of the District).

- f. Reevaluation: triennial multifactored evaluation/evaluation team report ("ETR") is due by February 7, 2022. The Parties agree to meet by December 1, 2021, to plan the 2022 ETR. The 2022 ETR will be completed in a timely manner. The Parties will work in a collaborative manner to schedule and conduct the assessments/evaluations and observations associated with the 2022 ETR. Parents waive their right to request and expressly release the District from its obligation to convene an IEP team meeting to consider the 2022 ETR prior to conducting the annual review IEP team meeting addressed in Paragraph 2.g. below. Parents retain their ability to request an independent educational evaluation related to the 2022 ETR if they disagree with the reevaluation.
- g. Because Parents have unilaterally placed Monarch for the 2020-2021 and 2021-2022 school years, Parents expressly waive the right to convene an annual IEP team meeting prior to development of the 2022-2023 IEP. The District, however, will annually issue a new IEP that that is substantively identical to the 10/11/2019 IEP, but with a new Meeting Date to ensure the District complies with its legal obligation to have a current IEP in place for Student.

If remains at Monarch through the 2021-2022 school year, the Parties agree to meet no later than May 1, 2022, to develop a 2022-2023 IEP for See also Paragraph 3 below – the District will convene an IEP team meeting sooner if returns to school in the District prior to the end of the 2021-2022 school year. The Parties agree to work cooperatively, collaboratively and in good faith to develop the 2022-2023 IEP. During the process of developing the 2022-2023 IEP, in addition to developing goals and objectives, and identifying appropriate special education and related services, the team will consider placement options fo. If the team determines Student's least restrictive environment is in the District or determines to identify a different separate facility at which to educate the team will develop and offer to implement a Transition Plan to facilitate return to school in the District or transition to a different separate facility. If Parents disagree with the IEP and/or educational placement proposed by the District for the 2022-2023 school year, and file a due process complaint regarding such IEP or educational placement, the Parties agree (as stated in Paragraph 2.j. below) that Monarch shall not be Student's "then-current educational placement (i.e., initial "stay-put" or "pendency

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placement”). Under such circumstances, “stay-put” or “pendency placement” shall be the placement identified in sections 7 and 11 of the 10/11/2019 IEP.

Parents are responsible for inviting Monarch personnel to the IEP team meeting(s), which will be convened at a mutually agreeable time for the District and Parents. The District agrees to allow an individual of Parents' choosing to observe any placement proposed by the IEP team designed to be in effect during the 2022-2023 school year, so long as said individual affirms their intent not to obtain, secure, retain, or redisclose information relating to other students.

- h. Parents agree to provide the District, within five (5) business days of the date issued, Monarch’s progress reports. Parents further give consent to the District and its employees to obtain any records regarding education at Monarch (including but not limited to all programming data, daily, weekly, bi-weekly logs or progress reports/notes, assessments, consultants’ reports, and evaluations) that the IEP team determines it needs to develop Student’s 2022-2023 IEP (see Paragraph 2.g., above). Parents shall provide to Monarch releases of information allowing the District to receive such education records from Monarch for the period [redacted] attends Monarch pursuant to the terms of this Agreement. If the District requires assistance from Parents to obtain educational information/records about [redacted] from Monarch, the District shall advise Parents of this need and provide Parents with specific guidance as to the nature of the assistance needed.

Parents also agree to request that Monarch provide the District with a duplicate copy of all progress reports/notes. In the case there is a copying fee associated with said records/reports, Parents shall provide the District with their copies of the documents and the District will duplicate said records/reports at the District and return the originals to Parents.

Parents agree to make [redacted] available for all assessments/evaluations and observations by District employees or representatives that the IEP team deems necessary to develop the 2022-2023 IEP and to complete the 2022 ETR (see Paragraphs 2.g. and 2.f., above). All observations that occur at Monarch shall be in accordance with Monarch’s policies/procedures and shall not occur more often than one time per quarter, unless said observations are related to completion of the 2022 ETR. The District shall notify Parents when it schedules observations at Monarch. Nothing herein shall prevent the evaluations/assessments and observations related to the 2022 ETR from taking place at Brecksville-Broadview Heights High School.

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Parents authorize the District to participate – either in person or telephonically / virtually – in all service planning meetings and/or program review meetings that Monarch conducts concerning (e.g., quarterly staffing meetings at Monarch, and IEP/ISP team meetings and progress meetings at Monarch). Parents will request that Monarch provide an invitation to the District Director of Pupil Services, through e-mail, of such meetings for when such invitation or notice is provided to Parents. If Monarch refuses to provide such notification, Parents will notify the District, in advance, of such meetings (i.e., Parents will notify the District Director of Pupil Services, via telephone or e-mail, at least seven (7) calendar days in advance of any meetings that occur at Monarch relating to , if Monarch provides Parents with fewer than seven (7) calendar days advanced notice of a meeting, Parents will provide notice to the District Director of Pupil Services within a reasonable period after their receipt of the notice from Monarch). If personnel from the District plan to attend or participate telephonically / virtually in a meeting, the District will notify Parents and Monarch in advance of the meeting. The District encourages Parents to invite personnel from Monarch to any District meetings concerning (1) the 2022 ETR, and/or (2) development of the 2022-2023 District IEP.

- i. Parents agree to provide the District with any ISPs/IEPs developed by Monarch for the 2020-2021 and 2021-2022 school years.
- j. Parents understand and agree that placement at Monarch is unilateral on their part and is not deemed “initial stay-put,” or ; “stay-put” or “initial/pendency placement” should Parents disagree with the educational program proposed by the District, including the educational placement, for the 2022-2023 school year (or any IEP proposed by the District at an earlier time pursuant to Paragraph 2.g. and Paragraph 3) and challenge the IEP or file any administrative or judicial proceeding regarding such IEP. The Parties agree that the parentally selected placement shall not be ; “then-current educational placement” (i.e., initial “stay-put” or “pendency placement”). Under such circumstances, “stay-put” or “pendency placement” shall be the placement identified in sections 7 and 11 of the 10/11/2019 IEP. The “stay-put” or “pendency placement” during any subsequent dispute may be changed as authorized by the IDEA and its implementing regulations (i.e., through a decision of the State Level Review Officer or through a mutual agreement between the District and Parents).
- h. Parents agree to assume full responsibility for federal, state, and local taxes and other payments, if any, owed on the amounts paid by the District, on behalf of Parents, to Monarch pursuant to this Agreement. While the District will report to the Internal Revenue Service (“IRS”) the amounts paid to Monarch pursuant to this Agreement by issuing a Form 1099-MISC to Monarch, the District will not issue to Parents a Form 1099-MISC, and no withholdings will be made from the amounts paid by the District to Monarch pursuant Paragraph 2.a. If it is later determined by the IRS or another

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governmental authority that the District should have withheld taxes from the amounts paid by it to Monarch pursuant to this Agreement, Parents agree to indemnify and hold the District harmless for the amount of such taxes, and to reimburse the District for any penalties and/or interest assessed against the District as a result of it failing to withhold the taxes on said payments.

- i. The District will pay up to three hundred ninety dollars (\$390.00) directly to Adrienne Kirshner, c/o Cuddy Law Firm, PLLC, for services rendered to Parents by their attorney in connection with preparation and review of this Agreement. Said payment will be made within fifteen (15) business days after the District receives an itemized statement and bill/invoice, including dates of services rendered, description of services, time expended, and the attorney's hourly rate, reflecting fees charged to Parents by their attorney in connection with preparation and review of this Agreement. A form 1099-MISC will be issued to Cuddy Law Firm, PLLC, who agrees to furnish its taxpayer identification number to the District.
3. The Parties agree that for any school year or time-period referenced in this Agreement, Parents and/or Student have the right to decline the settlement terms and amounts specified in Paragraph 2.a., and to seek to have Student educated in the District and to be served under the IDEA. If Parents and/or Student accept payment for any year or time-period referenced in Paragraph 2.a., claims for that specific year and/or time-period, including any right to access a FAPE from the District are waived for the period of the year covered by the payments in accordance with the terms of the Agreement.

Nothing herein shall prevent _____ from returning to and attending the District's schools for implementation of a new IEP that will be developed within ten (10) school days of returning to school in the District. In the interim, while the new IEP is being developed, the District will implement the 10/11/2019 IEP. Parents waive their right to challenge the appropriateness of the 10/11/2019 IEP during the ten (10) school days while a new IEP is developed. Parents retain the right to challenge the appropriateness of the new IEP, after it is developed and offered by the District.
4. This Agreement is not precedent setting. The Parties expressly agree that this Agreement shall have no bearing on _____ current and future educational programming and educational placement, except as expressly stated herein. As such, Parents agree that they are prohibited from introducing this Agreement or the payments made by the District in accordance with this Agreement in any future due process proceeding for the purpose of establishing _____'s need for placement outside of the District.
5. This Agreement and all payment obligations existing hereunder are contingent upon Student's mother and Student residing in the District, the District being provided records and access to Student in accordance with Paragraph 2.h. above, and Parents making, in a timely manner, the payments required pursuant to Paragraph 2.b. If Student's mother and/or Student no longer reside in the District, or if releases for education records and/or access to Student are not provided by Parents or Parents fail to make, in a timely manner, the payments required pursuant to Paragraph 2.b., the District's payment obligations shall terminate after a fourteen

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(14) calendar day period in which Parents can cure such failure(s). Nothing contained in this Agreement shall be construed to preclude Student and/or Parents from forfeiting payment(s) provided hereunder and returning to the District for an education.

6. I _____ and/or his legal guardian or representative(s), as designated by a Court or Parents, ever initiate any legal proceedings seeking to invalidate or set aside all or any portion(s) of this Agreement, other than an action for breach of this Agreement, Parents shall hold the District harmless and indemnify the District for any liability, judgment, legal fees, or other costs and expenses arising from such legal proceedings. To the extent permitted by law, any challenge to this Agreement must be brought in Federal District Court.
7. Parents expressly acknowledge that this Agreement is effective through the 2021-2022 school year, inclusive of the summer of 2022, and that circumstances may change. Parents further acknowledge and agree that they assume the risk of any and all changes in circumstance and that this Agreement shall not be invalidated by any such change.
8. The payments identified in Paragraph 2.a. shall be made in a timely manner in accordance with the terms of that Paragraph. Parents specifically waive any right to interest or late fees on the amount of settlement for any delay in payment from the date of settlement until the date payment is due in accordance with the terms of this Agreement, and specifically release and discharge the District and Peters Kalail & Markakis Co., L.P.A., including all of their predecessors, successors, assigns, officers, employees and agents, and each of them, in both their individual and official capacities, from any claim or demand for interest on the settlement amount to which the Parents may or may not otherwise be entitled in accordance with *Hartmann v. Duffey*, 95 Ohio St.3d 456 (2002).
9. In consideration of the promises and commitments of the Board, as set forth in this Agreement, Parents, on their own behalf and on behalf of _____ agree that all of the issues that could have been raised in an impartial due process hearing pursuant to the IDEA are resolved by this Agreement. Parents, on their own behalf and on behalf of _____, forever release and discharge the Board, including individual Board members, employees, and agents in their official capacities, (collectively referred to as "The Board and its Agents"), from any and all claims, demands, actions, causes of actions or suits at law or in equity of whatsoever kind and nature (including administrative complaints with the Ohio Department of Education and the United States Department of Education Office for Civil Rights, including claims of discrimination or retaliation pursuant to Section 504), which Parents and/or _____ may have had, now have, or may now or hereafter assert against the Board and its Agents for the entire period prior to and up to the date of this Agreement, with respect to _____ and his education in and through the District (i.e., the District's provision of a free appropriate public education to _____) and their participation in _____ educational programming. This comprehensive waiver of claims includes, but is not limited to, claims for education, special education, related services, transportation, tuition, room and board, reimbursement, compensatory education, damages (including related to claims of discrimination and/or retaliation), therapy, breach of contract, independent evaluations, and attorneys' fees. This release of claims shall run through the end of the 2021-2022 school year, inclusive of the summer of 2022 (provided _____ remains enrolled at Monarch through _____).

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the end of the 2021-2022 school year). _____ returns to the District prior to the conclusion of the summer of 2022 ESY program, this Agreement will run through the date he returns to school in the District. This discharge of any liability includes, but is not limited to, a release of all claims arising under Section 1983 of the Civil Rights Act (42 U.S.C. § 1983), 20 U.S.C. §§ 1400 et seq. (i.e., the Individuals with Disabilities Education Improvement Act), Section 504 of the Rehabilitation Act (29 U.S.C. § 794), the Americans with Disabilities Act (42 U.S.C. § 12101), Ohio Revised Code Chapter 3323, other civil rights laws, regulations that implement the above-referenced statutes, and the U.S. Constitution and Ohio Constitution. Notwithstanding the preceding, Parents retain all their rights under applicable laws and regulations to enforce this Agreement.

10. Parents (individually and on behalf of _____) agree to keep the existence of this Agreement and the terms and content of this Agreement confidential and will not release or discuss it, in writing or orally, with third parties. Specifically, they agree not to share this Agreement or the terms of this Agreement with anyone other than the following: (a) Monarch personnel necessary to facilitate implementation of this Agreement; (b) Parents' attorneys, accountants, financial advisors, and tax advisors; and (c) courts, impartial hearing officers, and mediators as necessary. Parents shall direct the individuals and organizations referenced in (a) and (b) to keep this document and its terms confidential, and that this document constitutes a student education record that is protected under FERPA and Ohio Revised Code Section 3319.321. If asked about their dispute with the Brecksville-Broadview Heights City School District, Parents shall respond only that it has been satisfactorily resolved. If it is determined by a court of competent jurisdiction that Parents violate this Paragraph, the court will have authority to award appropriate relief, which may include terminating the District's financial obligations under this Agreement and/or ordering Parents to refund all monies paid pursuant to this Agreement. The District specifically acknowledges that _____'s mere attendance at Monarch or presence as a student in Monarch's program does not constitute a breach of the terms of this provision. The District further acknowledges its responsibility to keep this agreement confidential pursuant to federal and state law as an educational record.
11. Parents expressly waive their right to initiate a complaint with the Ohio Department of Education ("ODE") relating to any aspect of _____ education arising on or before the date this Agreement is executed. Parents further agree that ODE does not have jurisdiction to investigate or rule upon any complaints brought by Parents relating to any aspects of Student's education arising on or before the date this Agreement is executed. Additionally, Parents waive their right to file a complaint with the U.S. Department of Education's Office for Civil Rights ("OCR") concerning any aspect of Student's education arising on or before the date this Agreement is executed (including claims of discrimination or retaliation pursuant to Section 504). Parents confirm that any issue/claim that could have been brought before ODE or OCR has been resolved.
12. The District and Parents agree that the provisions of this Agreement can only be modified through mutual agreement as evidenced by a document signed by both parties that serves as a supplement to this Agreement.

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13. The Parties acknowledge that they have read this Settlement Agreement, Release and Waiver, and fully understand its provisions. The Parties further acknowledge that they have had an opportunity to consult with legal counsel of their choosing to consider its terms before signing the Agreement. The Parties further declare and acknowledge that no promises or agreements not hereby expressed have been made to them and that this Settlement Agreement, Release and Waiver contains the entire agreement between the Parties. The Parties affirm they are signing this Agreement of their own free and voluntary will.
14. This Agreement does not represent or constitute, nor shall it be construed as, an admission of liability or wrongdoing by the Board, its agents, employees or successors, with respect to any claims Parents could have raised with respect to _____'s entitlement to a free appropriate public education. The District is not admitting any IEPs or placements that it previously offered were inappropriate; Parents do not admit that the same were appropriate. The Board expressly denies that it has done anything wrong or unlawful.
15. This Agreement is comprehensive with respect to the sums to be paid to and/or for the benefit of Parents, and Parents agree that neither they nor their attorney(s) shall make an application to a court for, or in any other manner seek, fees and/or costs in connection with development and/or review of this Agreement. Except as provided in this Agreement, the Parties shall bear their own costs in connection with this matter.
16. This Agreement is subject to approval by the Board of Education, which will consider this matter no later than August 26, 2020.

Date: _____

By: _____

For herself and on behalf of

Date: _____

By: _____

For himself and on behalf of

Date: _____

By: _____

Joelle Magyar, Superintendent
On behalf of Brecksville-Broadview Heights
City School District Board of Education

Date: _____

By: _____

Cynthia Tomassetti, Director of Pupil Services
On behalf of Brecksville-Broadview Heights
City School District Board of Education